

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 1
Honorable Eunice Lee, Presiding**

TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 11, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

<u>LINE 1</u>	24CV449313	Keith Lylee vs Ford Motor Company et al	Motion for Summary Judgment On March 23, 2026, defendant Ford Motor Company filed this Motion for Summary Judgment accompanied by proof of electronic service on plaintiff's counsel on that same day. Defendant received a hearing date of November 19, 2026, which was after the July 13, 2026 trial date originally set in this matter. On March 25, 2026, Defendant filed an ex parte application seeking to advance the hearing to Friday June 12, 2026, with a proof of service dated March 24. The Court granted the motion to advance the hearing and continued the trial to January 4, 2027. However, June 12 is a non-motion and calendar day and the Court is unable to hear cases, and the matter was moved to the closet motion date of June 11. On May 27, 2026, plaintiff's counsel from Strategic Legal Practices filed a notice that Tionna Carvalho was no longer counsel and that Larry Chae and Tyson Smith, both from the same law firm would substitute in as counsel. On May 29, 2026, Defendants filed a notice of non-opposition by the Plaintiff to Ford's its Motion for Summary Judgment. This motion was accompanied by a proof of service to the new attorneys Larry Chae and Tyson Smith with the same plaintiff's law firm, Strategic Legal Practices. Oppositions to motion for summary judgment was due on May 22, 2026 (based on a June 11 hearing) or May 25, 2026 (based on a June 12 hearing date). Regardless, the motion is unopposed and as of June 8, 2026, no opposition papers were filed. No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on April 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to
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			the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Here, the issue is the error in the moving party seeking a non-motion date of June 12, 2026. The court then moved the advanced hearing to the closet date of June 11, 2026. However, there is no record showing that the plaintiff was served notice of this advanced hearing date. The Court notes that Plaintiff's counsel was served with Defendant's underlying ex parte and notice of non-opposition, but that date of May 29, is after the opposition papers are due that reflect the June 11, 2026 date. There has been no response from Plaintiff. Based on the foregoing, the Court CONTINUES the motion to August 6, 2026 at 9:00 a.m. Department 1 to provide the plaintiff proper notice. Given that the trial date was also continued to January 4, 2026, no prejudice exists to hear the motion pending proper notice.
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LAW AND MOTION TENTATIVE RULINGS

LINES 2-3	22CV408816	Ross Brooks vs V& Victoria LLC et al	Motion to Compel (Line #2) and Motion for Admissions Deem Admitted (Line #3); Sanctions The moving party/Cross-Defendants Jojan Thomas Anthony and Jameskutty K. Matthew request to continue the motions and further case manage conference 60-90 days out given the March 20, 2026 Order. The present motions came for hearing on March 19, 2026. The motion to compel a <i>total of 235 separate further discovery responses</i> as follows: request for further responses to requests numbers 1- 178; Form interrogatories 3.6, 12.1, 12.4-12.7, 15.1, 16.1, and 17.1; and request for production numbers 2-7; and cross defendant Anthonys further request for responses to 1 through 42. Cross-Defendants Jojan Thomas Anthony, Jayasankar Puliampatta, Jameskutty K. Matthew, Shaju Cherian, Matthew Sebastian, and Biju Joseph (“Anothony et al.”) and cross-defendant V& Victoria LLC were ordered to provide a joint statement after meeting-and-conferring about the discovery at issue. No statement was provided. Based on the number of discovery at issue, the Court referred the parties to a discovery referee under Code of Civil Procedure sections 639 and 645.1 after confirming that neither side had an inability to pay. However, it was noted that cross-defendant V& Victoria was represented by an insurance company versus Anthony et al who are comprised of individuals. V& Victoria agreed to inquire if its insurance carrier would stipulate to covering a larger portion of referee costs. On April 30, 2026, the parties appeared and provided a case status update. On June 9, 2026, moving party/Cross-Defendants Anthony et al provided a status report informing the court that The remaining parties have met-and-conferred through their counsel and agreed to share the referees in a 60% (V & Victoria, LLC) - 40% (Anthony et al) split. Ronald Digesti will be appointed the discovery referee and that discovery facilitation is
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